



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings

- against -

Police Officer Efrain Santiago

Tax Registry No. 923115

Police Service Area 9
-----X

X

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:

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:

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FINAL

ORDER

OF

DISMISSAL

Police Officer Efrain Santiago, Tax Registry No. 923115, Shield No. 18634, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 2015-13168, as set forth on form P.D. 468-121, dated June 10, 2015, and after a review of the entire record, and Respondent, having pleaded Guilty, is found Guilty as charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Efrain Santiago from the Police Service of the City of New York.


JAMES P. O'NEILL
POLICE COMMISSIONER

EFFECTIVE:

10/23/18

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POLICE DEPARTMENT

September 13, 2018

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2015-13168

Police Officer Efrain Santiago :

Tax Registry No. 923115 :

Police Service Area 9 :

-----X
At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Daniel Maurer, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Hugh Ehrenzweig, Esq.
Ehrenzweig Law
75 South Broadway
White Plains, New York 10610

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Efrain Santiago, while on duty and assigned to the 26th Precinct, on or about and between August 3, 2013 and December 31, 2013, associated with Person A, an individual said Police Officer Santiago knew possessed a criminal history.

P.G. 203-10 Page 1, Paragraph 2(c) – PUBLIC CONTACT
PROHIBITED CONDUCT

2. Said Police Officer Efrain Santiago, while on duty and assigned to the 26th Precinct, on or about and between August 3, 2013 and December 31, 2013, disobeyed the directions of Lieutenant James Koschmerl and Sergeant Christopher Sharpe on July 19, 2012, to cease any contact with Person A. (*As Amended*)

P.G. 203-05 Page 1, Paragraph 1 – PERFORMANCE ON DUTY - GENERAL

3. Said Police Officer Efrain Santiago, while on duty and assigned to the 26th Precinct, on or about March 27, 2014, in New York County, failed to testify truthfully and completely at a Department disciplinary hearing before the Deputy Commissioner – Trials or her assistant, to wit: said Police Officer Santiago testified that he had not had any contact with Person A following an official Department interview held on July 19, 2012.

P.G. 211-01 Page 2, Paragraph 12(c) – DUTIES AND CONDUCT IN COURT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 22, 2018. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. After considering the evidence, and reviewing the post-trial submission of Respondent, I find that no mitigation is warranted, and recommend that Respondent be dismissed from the Department.

ANALYSIS

In a Department interview on July 19, 2012, Respondent was specifically made aware of the criminal history of an individual he had known since 2011 named Person A. Both Lieutenant James Koschmerl and Sergeant Christopher Sharpe provided Respondent with a detailed account of Person A's background, including his "mob ties," and that he had just served

approximately 16 years in prison and was currently on parole. The lieutenant and sergeant also directed Respondent not to have any further association with Person A. (Tr. 50-51) This case involves allegations that Respondent not only disobeyed the orders to cease any contact with Person A, he also deliberately failed to testify truthfully at a subsequent disciplinary trial regarding his continued association with Person A.

Respondent testified that he used to have a business relationship with Person A involving a jointly owned vehicle. Respondent leased a van, and Person A used it to chauffeur customers. Initially, Respondent was unaware of Person A's criminal history. However, Respondent acknowledged that during his July 19 Department interview, he was informed of Person A's criminal past, and directed to cease further contact. At some point after his Department interview, Respondent returned the leased vehicle. There was still \$7,000 due on the lease, which Person A initially agreed to pay. However, Person A then refused to pay the debt. (Tr. 28-30, 35, 56-57)

Respondent testified that he was extremely burdened with other financial obligations at the time, including the cost of supporting [REDACTED] [REDACTED] [REDACTED] As such, he felt a pressing need to have Person A pay the money that was owed. In order to collect on the debt, Respondent exchanged multiple telephone calls with Person A in the five-month period beginning August 2013. Specifically, phone records showed that Person A called Respondent 17 times, while Respondent called Person A 13 times; Respondent claimed, however, that many of his calls to Person A were unanswered. Respondent did acknowledge that there were phone conversations between them during that period, and that ultimately Person A made only one payment to him, a money order of \$300 or \$400. Respondent eventually settled the account with the leasing company, as reflected in a letter from Central Credit Services (Resp. Ex. A). (Tr. 33-36, 51-53)

Respondent acknowledged that at a Department disciplinary trial on March 27, 2014, he falsely testified that he did not have any contact with Person A after his July 19, 2012 Department interview. At the March 27, 2014 trial, Respondent, under oath, gave the following answers:

Q. Now, when you were notified by the police department that they wanted you to cease your relationship, any contact with Person A, did you, in fact, do that?

A. Yes, I did.

Q. Have you had any contact with him since you were questioned pursuant to Patrol Guide 206-13 in 2012?

A. No, I have not.

When questioned here about that prior testimony, Respondent admitted, "I lied. I messed up," though he insisted he was just trying to collect a debt and was not intending to deceive the Department. (Court Ex. 1, p. 16) (Tr. 47-48, 54-55, 63-64)

Respondent described himself as a "go-getter in a slow command." He offered several illustrations of good police work he has performed (see, e.g., Resp. Ex. B, news article describing a 2013 gun arrest); Respondent also submitted, post-trial, a police report summarizing the arrest he made. He testified that he believes he has passed three integrity tests. Respondent stated that he was in the Marine Corps for 10 years, and presently is a staff sergeant in the Air Force. (Tr. 37-47, 59)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on August 31, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. The Department Advocate recommends that Respondent be dismissed from the Department,

while counsel for Respondent argues that a lesser penalty is more appropriate to the misconduct here.

It is undisputed that at his July 19, 2012 Department interview, Respondent was specifically informed of Person A's criminal history, and directed not to have any further communication with him. Nevertheless, over a five-month period beginning in August 2013, Respondent continued to interact with Person A, as approximately 30 telephone calls were made between them. Respondent claimed that he only was concerned with collecting the money owed to him, and that his only contact with Person A was through the phone calls. He also noted that many of the calls he made were not answered by Person A. Even so, it is deeply troubling that Respondent disregarded the unambiguous orders from two Department supervisors and continued to associate with an individual who he knew had an extensive and serious criminal history.

Respondent then compounded this poor judgment with his blatantly false testimony at the disciplinary trial on March 27, 2014. When asked whether he had any additional contact with Person A after being instructed not to on July 19, 2012, Respondent answered unequivocally that he had not had any additional contact. As Respondent, himself, acknowledged on the witness stand here, that March 27 testimony was knowingly false, since he and Person A had placed multiple phone calls back and forth just a few months earlier, and had spoken with each other about the money owed on the lease. Respondent, under oath, deliberately concealed that he had continued business dealings with Person A after he had been specifically directed not to do so.

Furthermore, this is far from Respondent's first contact with the disciplinary system. In 2005, Respondent forfeited seventeen (17) vacation days for his participation in an off-duty fight outside a hotel in California for which he was arrested. During that incident, Respondent caused physical injury to an individual, and he also possessed a dangerous or deadly weapon, namely a

knife. In 2014, Respondent forfeited forty (40) vacation days in connection with two separate matters: in one case, after responding to a motor vehicle accident, Respondent failed to notify the dispatcher that a tow was needed, and instead allowed an unauthorized tow company to remove the vehicle. In the second matter, Respondent knowingly associated with Person A, the same individual involved in the present case. Respondent also engaged in unauthorized off-duty employment with Person A and another individual.

On the one hand, it is to Respondent's credit that he has openly acknowledged his misconduct in this matter. This tribunal also is mindful that Respondent has approximately two decades of service with the Department. Nevertheless, Respondent's disciplinary history, combined with the egregious nature of the present offenses, raises serious questions about his fitness to continue serving as a New York City police officer. Truth in testimony is a cornerstone of our justice system. When, as here, an officer willfully testifies falsely, he undermines the public's trust in its police. With his actions, Respondent has compromised his ability to testify under oath in future cases.

Respondent's conduct falls far short of the honesty and integrity expected of members of this Department. Taking into account the specific circumstances and issues presented here, including Respondent's troubling disciplinary history and the need for progressive discipline, separation from the Department is warranted. Accordingly, I recommend that Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner of Trials

APPROVED

OCT 22 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER EFRAIN SANTIAGO
TAX REGISTRY NO. 923115
DISCIPLINARY CASE NO. 2015-13168

Respondent was appointed to the Department on August 31, 1998. On his last three annual performance evaluations, he twice received 3.0 overall ratings of "Competent" for 2015 and 2016, and received a 4.5 rating of "Extremely Competent/Highly Competent" for 2014. [REDACTED]

In 2005, Respondent pled guilty to and forfeited seventeen (17) vacation days for being involved in an off-duty physical altercation where he caused injury to another person, and for possessing a knife. Respondent was arrested in connection with that incident, was suspended for thirty (30) days, and subsequently placed on modified assignment.

In 2014, Respondent pled guilty to criminal association, engaging in unauthorized off-duty employment with two separate employers, and, in a separate matter, allowing an unauthorized tow company to remove a vehicle from an accident scene. Following a mitigation hearing, Respondent forfeited 40 vacation days. As a result, Respondent was placed on Level 2 Discipline Monitoring on January 12, 2015. That monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials